materials generated in port during cargo activities as its discharge into the sea is not permitted.

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.3 discharging to port reception facilities the dunnage, lining and packaging materials generated in port during cargo activities as its discharge into the sea is not permitted.

2.1.4 Governments are encouraged to undertake research and technology development to minimize potential garbage and its impacts on the marine environment. Suggested areas for such study are listed below:

.1 development of recycling technology and systems for all types of materials that may be returned to shore as garbage; and

.2 development of technology for use of biodegradable materials to replace current plastic products as appropriate. In connection with this, governments should also study the impacts on the environment of the products from degradation of such new materials.

2.2 Fishing gear

2.2.1 Lost fishing gear may harm the marine environment or create a navigation hazard . Fishing vessel operators are required to record the discharge or loss of fishing gear in the Garbage Record Book or Ship's log as specified within regulations 7.1 and 10.3.4 of MARPOL Annex V.

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Fishing vessel operators are required to record the discharge or loss of fishing gear in the Garbage Record Book or Ship's log as specified within regulations 7.1 and 10.3.4 of MARPOL Annex V.

2.2.2 Fishing vessel operators are further required to report the accidental loss or discharge of fishing gear which poses a significant threat to the marine environment and navigation. Reports should be made to the flag State, and where appropriate, the coastal State in whose jurisdiction the loss of the fishing gear occurred, as specified in regulation 10.6 of MARPOL Annex V:

.1 the accidental loss or discharge of fishing gear which is required to be reported by regulation 10.6 of MARPOL Annex V should be determined specifically by the government. For such determination, the government is encouraged to consider various factors including: (1) the amount of the gear lost or discharged and (2) the conditions of the marine environment where it was lost or discharged. Comprehensive consideration is needed on the characteristics of the gear that was lost, including types, size (weight and/or length), quantity, material (especially, synthetic/plastic or not), buoyancy.

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was lost or discharged. Comprehensive consideration is needed on the characteristics of the gear that was lost, including types, size (weight and/or length), quantity, material (especially, synthetic/plastic or not), buoyancy. In addition, governments should consider the impact of the fishing gear in different locations in order to assess whether the lost gear represents a significant threat to the marine environment or navigation, taking into account the vulnerability of habitat and protected species to gear interactions. Governments are encouraged to report to IMO their measures taken for this issue with a view to promoting information sharing and opinion exchange among governments and relevant International Organizations. Further, governments are encouraged to report to IMO, progress made in implementing these measures, including summaries of where gear was lost and, if applicable, actions taken to address the gear loss;

.2 examples of lost or abandoned fishing gear which could be considered to pose a significant threat to the marine environment include whole or nearly whole large fishing gear or other large portions of gear. In determining the

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.2 examples of lost or abandoned fishing gear which could be considered to pose a significant threat to the marine environment include whole or nearly whole large fishing gear or other large portions of gear. In determining the threat to the marine environment, governments should give careful consideration to the impact of gear in sensitive areas, such as coral reefs, and in areas where interactions would have higher risks of detrimental impacts, such as foraging or breeding areas for protected species;

.3 governments are encouraged to develop communication frameworks to enable the recording and sharing of information on fishing gear loss where necessary in order to reduce loss and facilitate recovery of fishing gear. Governments are further encouraged to develop frameworks to assist fishing vessels in reporting the loss of gear to the flag State and to a coastal State. Such frameworks should take into consideration implementation challenges

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Governments are further encouraged to develop frameworks to assist fishing vessels in reporting the loss of gear to the flag State and to a coastal State. Such frameworks should take into consideration implementation challenges in small scale and artisanal fisheries and recreational operations;

.4 fishing industry, relevant international organizations and governments are

encouraged to undertake such research, technology development, information sharing and management measures as may be needed to minimize the probability of loss, and maximize the probability of retrieval of fishing gear from the sea; and

.5 governments should encourage vessel operators to implement appropriate onboard storage and handling of fishing gear, and should also consider relevant guidance from FAO and IMO.

2.3 Shipboard garbage handling (collection, processing, storage, discharge)

2.3.1 Regulation 3 of MARPOL Annex V provides that the discharge of garbage into the sea is prohibited, with limited exceptions, as summarized in table 1. Under certain conditions discharge into the sea of food wastes, animal carcasses, cleaning agents and additives

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sea is prohibited, with limited exceptions, as summarized in table 1. Under certain conditions discharge into the sea of food wastes, animal carcasses, cleaning agents and additives contained in hold washwater, deck and external surface washwater and cargo residues which are not considered to be harmful to the marine environment is permitted.

TABLE 1 SUMMARY OF RESTRICTIONS TO THE DISCHARGE OF GARBAGE INTO THE SEA UNDER REGULATIONS 4, 5 AND 6 OF MARPOL ANNEX V

(Note: Table 1 is intended as a summary reference. The provisions in MARPOL Annex V, not table 1, prevail.)

Garbage type1 All ships except platforms4 Offshore platforms located more than 12 nm from nearest land and ships when alongside or within 500 metres of such platforms4
Regulation 5
Outside special areas
Regulation 4
(Distances are from the nearest land)
Within special areas
Regulation 6
(Distances are from nearest land or nearest ice-shelf)
Food waste comminuted or ground2 >3 nm, en route and as far as practicable >12 nm, en route and as far as practicable3 Discharge permitted
Food waste not comminuted or ground >12 nm, en route and as

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nearest land or nearest
ice-shelf)
Food waste comminuted
or ground2 >3 nm, en route and as far as practicable >12 nm, en route and as far as practicable3 Discharge permitted
Food waste not
comminuted or ground
>12 nm, en route and as
far as practicable Discharge prohibited Discharge prohibited
Cargo residues5, 6 not
contained in washwater

> 12 nm, en route and as
far as practicable
Discharge prohibited

Discharge prohibited
Cargo residues5, 6
contained in washwater
> 12 nm, en route and as
far as practicable (subject